

STATE OF NEW YORK

5912--A

Cal. No. 149

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. BORES, COLTON, DeSTEFANO, GIBBS, ZINERMAN -- read once and referred to the Committee on Governmental Employees -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the civil service law, in relation to requiring exit surveys for resigning employees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "improve
2 civil service working conditions act".

3 § 2. The civil service law is amended by adding a new section 159-e to
4 read as follows:

5 § 159-e. Exit surveys and interviews. 1. For purposes of this section,
6 the following terms shall have the following meanings:

7 a. "Resigning employee" means an employee who has provided notice of
8 resignation from employment in the state civil service but does not
9 include a retiring employee.

10 b. "Retiring employee" means an employee who has provided notice of
11 retirement from employment in the state service.

12 c. "State agency" shall have the same meaning as defined in paragraph
13 a of subdivision one of section two hundred one of the executive law.

14 2. No later than January first, two thousand twenty-eight, each agency
15 shall provide to the department copies of any exit surveys or policies
16 that such state agency administers in relation to resigning or retiring
17 employees.

18 3. Upon consideration of any exit surveys or policies received from
19 agencies pursuant to subdivision two of this section, the president
20 shall create a comprehensive exit survey and interview protocol for
21 resigning employees and retiring employees. Such survey and interview
22 protocol shall include, but not be limited to: a. questions designed to
23 elicit details regarding the quality of the employee's experience during
24 their employment in state service and the employee's reasons for resign-
25 ing or retiring from employment in the state service; b. basic protocols
26 for managers that shall include, but not be limited to: (i) procedures

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 to administer such interviews; and (ii) procedures by which resigning or
2 retiring employees will be informed of the purpose of such interview;
3 and c. a method by which resigning or retiring employees shall be
4 informed that their responses to exit surveys are not subject to the
5 freedom of information law as set forth in article six of the public
6 officer's law.

7 4. a. State agencies shall offer electronic exit surveys created
8 pursuant to subdivision three of this section to all resigning employees
9 and retiring employees, to be completed on a voluntary basis.

10 b. State agencies shall make best efforts to offer to conduct exit
11 interviews pursuant to the protocol required by subdivision three of
12 this section to as many resigning employees and retiring employees as
13 practicable throughout the reporting period; provided, however, that
14 each state agency shall offer an exit interview to no fewer than thirty
15 percent of resigning or retiring employees.

16 c. Exit surveys and interviews shall be offered to resigning employees
17 or retiring employees as early as practicable following notice of resig-
18 nation or retirement and, if such employee elects to participate in such
19 survey or interview, shall be conducted on or before such employee's
20 last day of employment.

21 5. No later than March thirtieth, two thousand twenty-nine and by
22 March thirtieth annually thereafter, the department shall submit to the
23 governor, the speaker of the assembly, and the temporary president of
24 the senate:

25 a. a copy of the comprehensive exit survey and interview protocol
26 required by subdivision three of this section; and

27 b. a report regarding responses from exit surveys and interviews
28 administered during the reporting period pursuant to this section. Such
29 report shall include, but need not be limited to:

30 (i) The following information on resigning employees and retiring
31 employees for the prior calendar year, disaggregated by state agency,
32 civil service title, business title, title classification, managerial
33 status, as applicable, and status as resigning employee or retiring
34 employee:

35 (1) The number of such employees;

36 (2) The number of such employees who were offered to complete an exit
37 survey;

38 (3) The number of such employees who were offered an exit interview;

39 (4) The number of such employees who completed an exit survey; and

40 (5) The number of such employees who completed an exit interview.

41 (ii) A summary and analysis of information obtained from exit surveys
42 and interviews administered to resigning employees and retiring employ-
43 ees in the prior calendar year. Such summary and analysis shall make
44 best efforts to address the reasons for resignation or retirement given
45 by surveyed and interviewed employees, which may include, but are not
46 limited to: career change; decision to pursue further education; remote
47 work policies; leave policies; caregiving responsibilities; wages and
48 other compensation; conflict with colleagues; conflict with management;
49 perceived unsafe working conditions; concerns about possible harassment
50 or discrimination; workload; loss of city residency; and commute time.

51 § 3. Individual responses to exit surveys collected pursuant to
52 section 159-e of the civil service law shall be exempt from the Freedom
53 of Information Law as set forth in article 6 of the public officers law.

54 § 4. This act shall take effect immediately.